

Drugs & Cosmetics Rules, 1945 :Rule 158B

TITLE:

Classical Ayurvedic Medicine – Definition and Formulation Requirement

JURISDICTION:

India

CATEGORY:

Product Classification

SOURCE CITATION:

Drugs and Cosmetics Rules, 1945 – Rule 158B(I)(A), read with Section 3(a) of the Drugs and Cosmetics Act, 1940

PLAIN ENGLISH SUMMARY:

Rule 158B(I)(A) explains the category of Ayurveda, Siddha and Unani (ASU) medicines covered under Section 3(a) of the Drugs and Cosmetics Act, 1940.

For an Ayurvedic medicine to fall under this category, it must be intended for internal or external use for the diagnosis, treatment, mitigation or prevention of a disease or disorder in human beings or animals.

The medicine must also be manufactured exclusively according to the formulae described in the authoritative books of the Ayurvedic, Siddha and Unani systems of medicine that are specified in the First Schedule of the Drugs and Cosmetics Act, 1940.

In simple terms, a classical Ayurvedic formulation is linked to a formulation described in the recognised authoritative Ayurvedic texts listed under the First Schedule. Therefore, the source of the formulation is important when determining whether a product falls within this category.

For IP-SAKTI Sahayak, this provision can be used as a legal trigger when a user asks whether an Ayurvedic formulation is based on an authoritative/classical formulation or whether it falls under the Ayurvedic drug framework.

THE EXACT LEGAL TEXT:

158(B) Guidelines for issue of license with respect to Ayurveda, Siddha or Unani drugs.-

I. (A). Ayurveda, Siddha Unani Medicines under section 3(a):-

Ayurveda, Siddha or Unani drugs includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, and manufactured exclusively in accordance with the formulae described in the authoritative books of Ayurvedic, Siddha and Unani Tibb system of medicine, as specified in the First Schedule;

KEYWORDS/TRIGGERS:

classical Ayurvedic medicine, classical formulation, Ayurvedic drug, Ayurveda medicine, Section 3(a), Rule 158B, authoritative Ayurvedic books, First Schedule

Drugs and Cosmetics Act, 1940 – Section 3(a)

TITLE:

Ayurvedic, Siddha or Unani Drug

JURISDICTION:

India

CATEGORY:

Classification

SOURCE CITATION:

Drugs and Cosmetics Act, 1940 – Section 3(a)

PLAIN ENGLISH SUMMARY:

An Ayurvedic, Siddha or Unani (ASU) drug includes medicines intended for internal or external use for the diagnosis, treatment, mitigation or prevention of disease or disorder in humans or animals. To qualify under this definition, the medicine must be manufactured exclusively according to the formulae described in the authoritative books of the Ayurvedic, Siddha and Unani systems of medicine specified in the First Schedule.

THE EXACT LEGAL TEXT:

(a) —(Ayurvedic, Siddha or Unani) drugll includes all medicines intended for internal or external use for or in the diagnosis, treatment, mitigation or prevention of (disease or disorder in human

beings or animals, and manufactured) exclusively in accordance with the formulae described in, the authoritative books of (Ayurvedic, Siddha and Unani Tibb systems of medicine), specified in the First Schedule;

KEYWORDS/TRIGGERS:

Ayurvedic drug, ASU drug, classical Ayurvedic medicine, Section 3(a), Ayurvedic medicine definition, authoritative books, First Schedule, classical formulation

Drugs and Cosmetics Act, 1940 – Section 3(h)

TITLE: Patent or Proprietary Medicine – Definition

JURISDICTION: India

CATEGORY: Product Classification & Regulation

SOURCE CITATION: Drugs and Cosmetics Act, 1940 – Section 3(h)(i)

PLAIN ENGLISH SUMMARY:

For Ayurvedic, Siddha and Unani medicines, a patent or proprietary medicine is a formulation containing only ingredients mentioned in the formulae of the authoritative books listed in the First Schedule. However, it does not include parenteral medicines or formulations already covered as classical ASU medicines under Section 3(a).

THE EXACT LEGAL TEXT:

(h) “patent or proprietary medicine” means,—

(i) in relation to Ayurvedic, Siddha or Unani Tibb systems of medicine all formulations containing only such ingredients mentioned in the formulae described in the authoritative books of Ayurveda, Siddha or Unani Tibb systems of medicine specified in the First Schedule, but does not include a medicine which is administered by parenteral route and also a formulation included in the authoritative books as specified in clause (a));

KEYWORDS/TRIGGERS:

patent proprietary medicine, proprietary Ayurvedic medicine, Section 3(h), ASU proprietary medicine, Ayurvedic formulation, First Schedule, classical vs proprietary, patent medicine

Section 3(aaa) — Cosmetic

Title: Definition of Cosmetic

Jurisdiction: India

Category: Classification

Source Citation: Drugs and Cosmetics Act, 1940, Section 3(aaa)

Plain English Summary:

This clause defines a cosmetic as an article applied to the human body for purposes such as cleansing, beautifying, promoting attractiveness or changing appearance. For an Ayurvedic startup, this definition helps distinguish cosmetic products from Ayurvedic medicines based on their intended purpose.

The Exact Legal Text:

(aaa) "cosmetic" means any article intended to be rubbed, poured, sprinkled or sprayed on, or introduced into, or otherwise applied to, the human body or any part thereof for cleansing, beautifying, promoting attractiveness, or altering the appearance, and includes any article intended for use as a component of cosmetic;

Keywords/Triggers:

Ayurvedic cosmetic, cosmetic definition, beauty product, cleansing product, cosmetic classification, cosmetic vs medicine, appearance product, cosmetic regulation

Section 3(b) — Drug

Title: Definition of Drug

Jurisdiction: India

Category: Classification

Source Citation: Drugs and Cosmetics Act, 1940, Section 3(b)

Plain English Summary:

This clause gives the broader legal definition of a drug, covering medicines and substances used for diagnosis, treatment, mitigation or prevention of disease or disorder. It also covers certain substances, drug components and specified medical devices, helping determine whether a product falls within the regulatory scope of the Act.

The Exact Legal Text:

(b) "drug" includes—

(i) all medicines for internal or external use of human beings or animals and all substances

intended to be used for or in the diagnosis, treatment, mitigation or prevention of any disease or disorder in human beings or animals, including preparations applied on human body for the purpose of repelling insects like mosquitoes;

(ii) such substances (other than food) intended to affect the structure or any function of the human body or intended to be used for the destruction of vermin or insects which cause disease in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette;

(iii) all substances intended for use as components of a drug including empty gelatin capsules; and

(iv) such devices intended for internal or external use in the diagnosis, treatment, mitigation or prevention of disease or disorder in human beings or animals, as may be specified from time to time by the Central Government by notification in the Official Gazette, after consultation with the Board;

Keywords/Triggers:

drug definition, Ayurvedic medicine, drug classification, medicine regulation, disease treatment, drug components, medical device, drug applicability